

Rahul Seth v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 July 2022 · Writ-C No. 16519 of 2022 (All.) · WRIT-C No. 16519 of 2022 · **Writ disposed of without merits; petitioner relegated to a clause 6.5 objection, with coercive action stayed for eight weeks or until that objection is decided, whichever is earlier.**

HEADNOTE

A writ by the premises owner challenging recovery of electricity dues on a citation issued against the tenant was disposed of without examining merits. The petitioner was given liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided time-bound after hearing, with a limited stay of coercive action on the impugned demand.

FACTUAL SUMMARY

Rahul Seth, owner of the premises, sought to quash a 16 December 2021 recovery certificate of Purvanchal Vidyut Vitran Nigam Ltd. insofar as recovery was being effected from him. He said the citation to appear was against Ravindra Kumar Seth, his tenant, and that none had been issued against him as owner. On 7 June 2022 coercive action on that citation was stayed. On 7 July 2022, counsel for the licensee stated that the petitioner could object to the demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-objection

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, before the concerned officer within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The owner's writ against recovery on a citation issued against the tenant was disposed of without merits, with liberty to object under clause 6.5 rather than a decision on the recovery itself. ¶ 1

clause-6.5-statutory-remedy-disputed-bill An objection under Para 6.5 was treated as the statutory forum for the disputed demand, to be decided after hearing within four weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE OR CITATION ISSUED AGAINST THE TENANT COULD BE ENFORCED AGAINST THE OWNER OF THE PREMISES

The Court expressly declined to opine on the merits of the petitioner's case. ¶ 1